

**OFFICE OF THE SECRETARY**

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October 15, 2020

The Honorable Victoria M. Chavez  
Judge of the Superior Court  
County of Los Angeles  
200 West Compton Boulevard  
Compton, CA 90220

Re: Jose Damian Garcia  
CDCR No: V29840  
Case No: TA070303-01  
Date of Sentence: March 02, 2004

Dear Honorable Victoria M. Chavez:

The purpose of this letter is to provide the court with the authority to resentence inmate Jose D. Garcia, V29840 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Garcia has remained disciplinary free since being received to CDCR on March 30, 2004. Inmate Garcia is currently assigned as a Plant Operations Maintenance Mechanic. Inmate Garcia's current supervisor states he is a quick learner, is very motivated, has great leadership qualities, and steps up to solve issues among the inmate workers in his area, which helps to avoid inmate conflicts. The supervisor also stated he would hire Garcia on the streets, and that he is a model inmate who is very motivated to learn. Inmate Garcia also participates in Alcoholics Anonymous and Narcotics Anonymous, Self-Help Groups. Garcia has ten Laudatory Chrono's from these self-help sponsors acknowledging his commitment and dedication to these Self-Awareness and



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Improvement Groups. Various staff at California Correctional Institution have been interviewed in regards to inmate Garcia's current programming and behavior. Staff stated that he is a programmer, very helpful, and is clean and quiet.

Having reviewed the enclosed documentation it appears that inmate Garcia's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



KATHLEEN ALLISON

Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office  
Los Angeles County Public Defender's Office